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Fundamental Rights (Part-III: Article 12-35)

These are **fundamental** for **all round** (material, intellectual, moral and spiritual) **development**. These were inspired by the **Constitution of the USA (Bill of Rights)**. Fundamental Rights in India are **more elaborate** than those found in any other country in the world, including the USA. It has been rightly described as the **Magna Carta** of India.

FEATURES OF THE FUNDAMENTAL RIGHTS

- **Amendable:** Can be amended by Parliament via constitutional amendments, without altering the “basic structure” of the Constitution.
- **Qualified:** Rights are not absolute and are subject to reasonable restrictions.
- **Protection Against State and Individuals:** Protection against arbitrary state action, with some extending protection against private individuals.
- **Positive and Negative Rights:** Some rights limit state authority (negative), while others provide individual privileges (positive).
- **Democratic:** Promote political democracy by limiting executive tyranny and arbitrary legislative laws.
- **Justiciable:** Enforceable through courts if violated.
- **Claims against state:** Rights are **claims by the citizens against the state** and not vice versa. [UPSC 2017]
- They can be **suspended** during the operation of a **National Emergency** except for the rights guaranteed by **Articles 20 and 21**.

- The **six fundamental rights** guaranteed by **Article 19** are **automatically suspended** only on the grounds of **external aggression** (external emergency) and **not** on the grounds of armed rebellion (internal emergency).

Constitutional Provisions with Respect to Fundamental Rights

1. Right to Equality (Article 14-18)
2. Right to Freedom (Article 19-22)
3. Right against Exploitation (Article 23-24)
4. Right to freedom of Religion (Article 25-28)
5. Cultural and Educational Rights (Article 29-30)
6. Right to Property (Article 31) (**deleted**)
7. Right to Constitutional Remedies (Article 32)

The **44th Amendment Act, 1978**, removed the right to property from the list of Fundamental Rights. It has been reclassified as a **Legal and Constitutional right** under **Article 300-A in Part XII** of the Constitution. Consequently, the current count of Fundamental Rights is **six**.

Fundamental Rights available

- **Only to citizens and not to foreigners:** Articles 15, 16, 19, 29 and 30.
- **To both citizens and foreigners** (except enemy aliens) Articles 14, 20 to 28.

Definition of State and Laws Inconsistent with Fundamental Rights

Definition of State (Article 12)	Laws Inconsistent with Fundamental Rights (Article 13)
• As per Article 12, the term State includes Government and parliament; Government and legislature of states; All local authorities i.e. municipalities, panchayat, district boards, improvement trust etc.; All other authorities, that is, statutory or non-statutory authorities like LIC, ONGC, etc. • According to the Supreme Court, even a private body or an agency working as an instrument of the state falls within the meaning of state under Article 12.	• Article 13: All laws that are inconsistent with or in derogation of any of the fundamental rights shall be void (expressly provides for the doctrine of judicial review). • Term ‘law’ in Article 13: Permanent laws enacted by the centre and state; temporary ordinance by the President; Statutory instruments of delegated legislation (executive legislation) like order; custom or usage having the force of law. • Article 13(4) states that nothing in this article shall apply to any amendment of this constitution made under Article 368. (24th constitutional amendment, 1971) ○ However, in the Kesavananda Bharati case (1973), the SC held that a Constitutional amendment can be challenged on the ground if it violates a fundamental right that forms a part of the ‘basic structure’ of the Constitution and hence, can be declared as void.

RIGHT TO EQUALITY: ARTICLE 14-18

- **Article 14:** The state shall not deny to any person “equality before the law” or the “equal protection of the laws” within the territory of India.

Equality Before Law (British Origin + Negative connotation)

- Absence of any special privileges in favour of any person;
- Equal subjection of all persons to ordinary law of land administered by ordinary law courts;
- No person is above the law.

Equal Protection of Law (American Origin + Positive notion)

- Equality of treatment under equal circumstances, both in privileges conferred and liabilities imposed by the laws;
- Similar application of the same laws to all persons who are similarly situated;
- Like should be treated alike without any discrimination.

- The Supreme Court held that where equals and unequals are treated differently, Article 14 does not apply.
- **Article 14 forbids class legislation**, but it permits reasonable classification of persons, objects and transactions by the law (should not be arbitrary, artificial or evasive). A Legislation which confers on the executive Or administrative authority an unguided and uncontrolled discretionary power in the matter of application of law violates **Article 14 of the Constitution**. [UPSC 2021]
- **Rule of Law (by A V Dicey) (Basic feature of the Constitution):** The concept of ‘Equality before Law’ is an element of the Rule of Law.
- **Rule of Law has 3 fundamental principles:** The first and the second elements are applicable to the Indian System (the Constitution is the source of the individual rights).
 - Absence of arbitrary power - applicable to the Indian System. [UPSC 2021]
 - Equality before the law - applicable to the Indian System.
 - Primacy of individual rights - **Not applicable**, as the constitution is the source of individual rights.

Exceptions to Equality:

- **Art 361:** The President of India and Governor enjoy few immunities.
- **Art 361-A:** No person is liable for any civil or criminal proceedings in any court in respect of publication in the newspaper (or by radio/television) of a substantially true report of any proceedings of Parliament or the state legislature.
- **Art 105:** Parliamentary privilege of members of Parliament.
- **Art 194:** Privileges of members of the state legislature in the legislature or any committee thereof.
- **Art 31-C:** SC held that where “Art 31-C comes in, Art 14 goes out”.
 - It provides that the laws made by the state for implementing the directive principles contained in clause (b) or clause (c) of Article 39 cannot be challenged on the grounds that they are violative of Article 14.

- Foreign sovereigns and diplomats enjoy immunity from criminal and civil proceedings.
- The UNO and its agencies enjoy diplomatic immunity.

- **Article 15(1):** The state shall **not discriminate** against any citizen on grounds **only** of religion, race, caste, sex or place of birth. The word ‘only’ connotes that **discrimination on other grounds is not prohibited**.
- **Art 15(2):** No citizen shall on the grounds only of **religion, race, caste, sex, place of birth, or any of them**, be subject to any disability, liability restriction or condition with regard to -
 - Access to shops, public restaurant, hotels, and place of entertainment or
 - The use of wells, tanks, bathing ghats, roads and places of public resorts maintained wholly or partly out of state funds or dedicated to the use of the general public.
- This provision prohibits discrimination **both by the State and private individuals**, while the former provision prohibits discrimination only by the State.
- **Art 15(3) and 15(4):** Foundational bricks of reservation system in the country.
- **Four exceptions to this general rule of non-discrimination:**
 - The State is permitted to make any special provision for **women and children**.
 - For the advancement of any **socially and educationally backward classes** or for SCs and STs.
 - For the advancement of any **socially and educationally backward classes** of citizens or for SCs and STs regarding their **admission to educational institutions, including private educational institutions**, whether aided or unaided by the state **except minority educational institutions**.
 - For the advancement of any **economically weaker section (EWS)** of citizens.

- **Reservation for OBCs in Educational Institutions:**
 - **Exception in Article 15 (5):** The **93rd Amendment Act (2005)** enacted Central Educational Institutions (reservation in admission) Act, 2006, providing quota for 27% reservation for the OBCs in all central higher educational institutions including the IITs and the IIM.
 - The Supreme Court upheld the validity and directed the central government to exclude the '**creamy layer**' (advanced sections) among the OBCs while implementing the law.
- **Reservation for EWS in Educational Institutions:**
 - **Exception in Article 15 (6)** was added by the **103rd Amendment Act of 2019**. **10% reservation** to EWS in admission to educational institutions was introduced.
 - EWSs who are not covered under any of the existing schemes of reservations for SCs, STs and OBCs.

Creamy Layer for SC-ST

- The **Supreme Court of India** in review judgement of Punjab and Haryana High Court, allowed **states the authority to sub-classify reserved category groups**, such as **Scheduled Castes (SCs)** and **Scheduled Tribes (STs)**, for the purpose of reservations.
- This decision overturns the **E.V. Chinnaiah vs. State of Andhra Pradesh, 2004 ruling**, which altered the landscape of reservation policies in India.
- The Supreme Court allowed states to sub-classify SCs and STs based on backwardness, applying the creamy layer principle to exclude privileged groups. Sub-classification must rely on empirical data, and 100% reservation for any subclass is impermissible
- According to SC, States can now sub-classify SCs within the 15% reservation quota to provide better support for the most disadvantaged groups. The court stated that Reservation has to be limited only to the first generation.

Article 16: Equality of opportunity for all citizens in matters of **public employment** or appointment to any office under the state.

- No citizen can be discriminated against or be ineligible for any employment or office under the state on grounds of **only religion, race, caste, sex, descent, place of birth or residence**.
- **Four exceptions to this general rule of Equality of opportunity:**
 - Parliament can prescribe **residence as a condition** for certain employment or appointment in a State or UT or local authority or other authority (presently only in Andhra Pradesh and Telangana).
 - State can provide for **reservation of appointments or posts in favour of any backward class** that is not adequately represented in state services
 - A law can provide that the incumbent of an office related to a religious or denominational institution or a member of its governing body **should belong to the particular religion or denomination**.
 - State is permitted to make a provision for the reservation of **upto 10%** of appointment of post in favour of any citizen belonging to EWS.
- **Indra Sawhney Judgement:** SC in **Indra Sawhney (1992)**, examined the scope of **Article 16(4)**:
 - It upheld the constitutional validity of 27% reservation for the OBCs with certain conditions.
 - Advanced sections among the OBCs (**the creamy layer**) should be excluded from the list of beneficiaries of reservation.
 - Rejected the additional reservation of 10% for poorer sections.
 - Total reserved quota **should not exceed 50%** except in some extraordinary situations.
 - No reservation in promotions; reservation should be confined to initial appointments only.
 - '**Carry Forward Rule**' in case of backlog vacancies is valid - should not violate the 50% rule.
 - A permanent statutory body should be established to examine inclusion-exclusion purposes. [UPSC 2023]
- **1953:** The **First Backward Classes Commission** was formed under the chairmanship of **Kaka Kalelkar**.
- **1979:** Under **Article 340**, **Second Backward Classes Commission** under the chairmanship of **B.P. Mandal** to investigate the conditions of the SEBCs (Socially and Educationally Backward Classes) and suggest measures for their advancement -
 - **About** 52% of India's population is Socially + educationally backward (excluding SCs and STs)
 - Reservation of **27%** government jobs for the OBCs- total reservation would be 50%.
- **1990:** V.P. Singh Govt. declared a **reservation of 27%** in government jobs for the OBCs.
- **1991:** Narasimha Rao Govt introduced two changes:
 - Preference to the poorer sections among the OBCs in the **27% quota** (economic criteria)
 - Reservation of **another 10%** in jobs for poorer sections among the higher castes.
- **NCBC** (National Commission Backward Classes) was established by an Act in 1993. It was accorded **constitutional status** by the **102nd CAA (2018)** by inserting a new Article 338-B in the constitution.

Justice Rohini Commission:

The Commission, formed in 2017 under Article 340 of the Indian Constitution, was tasked with investigating the unequal distribution of reservation benefits among OBCs. Its objectives include developing a scientific approach for sub-categorization within OBCs, identifying and classifying castes in the Central List, and reviewing the list to address errors, repetitions, and inconsistencies. In 2020, its mandate expanded to correcting ambiguities and transcription issues.

Article 17: It abolishes ‘untouchability’ and forbids its practice in any form. [UPSC 2020]

- The Untouchability (Offences) Act, 1955 was amended in 1976 and renamed as “**Protection of Civil Rights Act, 1955**”. The phrase “Untouchability” is **not defined** either in the Constitution or in the act.
- **Mysore High Court:** The subject matter of Article 17 is not untouchability in the literal or grammatical sense but the ‘practice as it had developed historically in the country’.
- **Exception:** Does not cover the **social boycott** of a few individuals or their exclusion from religious services etc.
- **The Supreme Court**, in the **People’s Union For Democratic Rights** case (1982), held that the right under Article 17 is available **against private individuals**, and it is the **constitutional obligation of the state** to take necessary action to ensure that this right is not violated.

Article 18: It abolishes titles and makes four provisions in that regard:

- It prohibits the state from conferring any title (**except a military or academic distinction**) on anybody, **whether a citizen or a foreigner**.
- It prohibits a citizen of India from accepting any title from any foreign state.
- Foreigners holding any office of profit or trust under the state cannot accept any title from any foreign state **without the consent of the President**.

Article 19 (1)(a): Freedom of Speech and Expression

The Supreme Court held that freedom of speech contains the following rights:

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| <ul style="list-style-type: none">• Right to propagate one’s views as well as the views of others. (Freedom of circulation.)• Freedom of the press.• Freedom of commercial advertisements.• Right against tapping of telephonic conversation.• Right to telecast, that is, the government has no monopoly on electronic media.• Right against bandh called by a political party or organisation.• Right to know about government activities.• Freedom of silence.• Right against imposition of pre-censorship on a newspaper. | <ul style="list-style-type: none">• Right to fly the national flag.• Right of voters to know the antecedents of the candidates contesting elections.• Right to choose the medium of instruction at the stage of primary school.• Right to express gender identity.• Right to reply (right to answer the criticism).• Right to post information/videos on the internet/ social media.• Right of film-makers to exhibit their films.• Right to access the internet (right to access to information via the internet)• Right to demonstration or picketing but not the right to strike. |
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- No citizen or foreigner holding any office of profit or trust under the State is to accept any present, emolument/ office from/under any foreign State **without the consent of the president**.
- **The Supreme Court in the Balaji Raghavan Case (1996)** upheld the constitutional validity of the National Awards–Bharat Ratna, Padma Vibhushan, Padma Bhushan and Padma Shri. [UPSC 2021]
 - SC ruled that these awards do not amount to ‘titles’ within the meaning of **Article 18, which prohibits only hereditary titles of nobility** - Maharaja, Raj/ Rai Bahadur, Rai Saheb, Dewan Bahadur etc.
- They **should not be used as suffixes or prefixes** to the names of awardees. Otherwise, they should forfeit the awards.
- National Awards were instituted in 1954. The Janata Party government headed by Morarji Desai discontinued them in 1977. But they were again revived in 1980 by the Indira Gandhi government.

RIGHT TO FREEDOM: ARTICLE 19-22

Article 19(1): Guarantees to all citizens the **six rights**.

- Originally, the Constitution provided for seven Fundamental Rights under Article 19. The **right to property** was **deleted** from the list by the **44th Amendment Act, 1978**. It is made a **legal right** under **Article 300-A in Part XII** of the Constitution. So, at present, there are only **six Fundamental Rights** under **Article 19**. [UPSC 2021]
- The Supreme Court has ruled that a fundamental right under Articles 19 and 21 **can be enforced even against private parties** other than the State or its instrumentalities.
- States can impose **reasonable restrictions on these 6 rights solely** on the grounds mentioned in **Article 19(2) itself and not on other grounds**.

- **Article 19(2):** The State can impose **reasonable restrictions** on the following grounds: Friendly relations with foreign states (1st CAA, 1951); Incitement to an offence (1st CAA, 1951); Public order (1st CAA, 1951); Sovereignty and integrity of India (16th CAA, 1963); Defamation; Contempt of court; Security of the state; Decency or morality.

Article 19 (1)(b): Freedom of Assembly: All Citizens have the **right to assemble peaceably and without arms**.

- Right to hold public meetings, demonstrations and take out processions.
- Permitted **only on public land** in a peaceful manner and without arms.
- **Does not protect:** Violent, disorderly, riotous assemblies or one that causes a breach of public peace or involves arms. Right does **not include Right to Strike**.
- **Article 19 (3)** mentions **reasonable restrictions on two grounds:** Sovereignty and integrity of India; Public order, including the maintenance of traffic in the concerned area.
- **Section 144 (CrPC):** Magistrate can restrain an assembly, meeting or procession involving the risk of obstruction, annoyance or danger to human life, health or safety or disturbance of public tranquillity or riot or any affray – invoked on many instances to tackle COVID-19.
- **Section 141 (IPC):** Assembly of five or more persons becomes unlawful if the objective is:
 - To resist the execution of any law or legal process.
 - To forcibly occupy the property of some person.
 - To commit any mischief or criminal trespass.
 - To force someone to do an illegal act.
 - To threaten govt officials on exercising lawful powers.

Article 19 (1)(c): Freedom of Association: All citizens have the right to form associations or unions or cooperative societies:

- **Right to Form:** Political Parties + companies + partnership firms + societies + clubs + organisations + trade unions or any body of persons. Includes the **right to continue** with the association. Includes **negative right of not to form or join** an association or union.
- **Article 19(4) - Reasonable restrictions:** Sovereignty of India + Integrity of India + Public order + Morality.
- **Right to obtain recognition** of association is **not a fundamental right**.
- **Supreme Court** held that **trade unions** have:
 - No guaranteed right to effective bargaining.
 - Have **no right to strike**. (It can be controlled by an appropriate industrial law.)
 - Have no right to declare a lockout.

Article- 19(1)(d): Freedom of Movement: Every citizen has the right to move freely - Inter-state and Intra-state movement.

- **Article 19(5) - Reasonable restrictions:** Interest of general public + Protection of interests of any STs.

- **Supreme Court:** The movement of prostitutes can be restricted on grounds of - public health and morals.
- **Article 19:** Internal freedom of movement - right to **move inside** the country.
- **Article 21:** External freedom of movement - right to **move out of** the country.

Article- 19(1)(e): Freedom of Residence: Every citizen has the right to **reside and settle in any part** of the territory of India. (stay temporarily or set up a domicile at any place permanently.)

- **Intended to remove internal barriers** within the country. (to promote nationalism and avoid narrow-mindedness.)
- **Article 19(5) - Reasonable restrictions:** Interest of general public and Protection of interests of any ST.
- In many parts of the country, the tribals have been permitted to regulate their property rights in accordance with their customary rules and laws.
- **Supreme court:** Certain areas can be banned for certain kinds of persons like **prostitutes and habitual offenders**.

Article- 19(1)(g): Freedom of Profession: All citizens are given the **right to practise any profession** or to carry on **any occupation, trade and business**.

- **Very wide:** Covers all means of earning one's livelihood
- **Article 19(6): The State can impose reasonable restrictions on the exercise of this right in the interest of the general public. State is empowered to:**
 - Prescribe professional/technical qualifications necessary for practising any profession or carrying on any occupation, trade or business;
 - Carry on by itself any trade, business, industry or service whether to the exclusion (complete or partial) of citizens or otherwise.
 - State is **not required to justify its monopoly**.
- **Does not include:** Right to carry on a profession or business or trade or occupation that is **immoral or dangerous** – state can absolutely prohibit these or regulate through licensing

Article 20: Protection in respect of conviction for offences

Protection **against arbitrary and excessive punishment** to an accused person - Citizen, or foreigner or legal person like a company or a corporation.

- **No ex-post-facto Law** (imposes penalties retrospectively): No person shall be convicted of any offence except for violation of a **law in force at the time of the commission of the act** nor subjected to a penalty greater than that prescribed by the law in force at the time of the commission of an offence.
 - The limitation is imposed only with respect to **criminal law, not civil laws** or tax laws;
 - It **cannot** be claimed in case of **preventive detention** /demanding security from a person.



- **No Double Jeopardy:** No one shall be prosecuted and **punished for the same offence more than once**. Available only on proceedings before a court of law or judicial tribunal (judicial bodies). Inquiries by Dept. or administrative authorities are exceptions.
- **No Self-Incrimination:** No person accused of any offence shall be compelled to be a witness against himself (oral and documentary evidence). It only extends to **criminal proceedings** and not to civil proceedings. It doesn't extend to:
 - Compulsory production of material objects,
 - Compulsion to give thumb impression, blood specimen,
 - Compulsory exhibition of body.

Article 21: Protection of life and personal liberty

No person shall be deprived of his life or personal liberty except according to the **procedure established by law**. This right is available to both citizens and non-citizens.

- **Procedure established by law (borrowed from the Japanese Constitution):** The validity of a law that has prescribed a procedure cannot be questioned on the ground that the law is unreasonable, unfair or unjust.
- **Due Process of Law (American concept):** A doctrine that not only checks if there is a law to deprive the life and personal liberty of a person but also **ensures that the law is made fair and just**. [UPSC 2023]

Landmark Cases on Article 21

- **Gopalan Case (1950):** Protection under Article 21 is available against **arbitrary executive action** and **not**

from arbitrary legislative action. Here the SC took a narrow interpretation of Article 21.

- **Personal liberty:** only liberty relating to the person or body of an individual.
- **Maneka Gandhi Case (1978):** Introduced '**due process of law**': Protection under Article 21 should be available not only against arbitrary executive action but **also against arbitrary legislative action**.
 - The right to life and personal liberty of a person **cannot be deprived by law** provided the procedure prescribed by that law is **reasonable, fair and just**.
 - **Right to life:** Right to live with **human dignity**.
 - **Personal liberty:** Widest amplitude, and it covers a variety of rights that constitute the personal liberties of a man. It is a **wider interpretation** of Article 21.
- **KS Puttaswamy Case (2017):** It held that **privacy is a natural right** that inheres in all-natural persons, and that right may be restricted only by state action **if it passes each of three tests**:
 - Such state action must have a legislative mandate;
 - It must be pursuing a legitimate state purpose;
 - It must be proportionate. [UPSC 2018]
- **Hadiya Case (2017):** The Supreme Court held that "The **right to marry** a person of one's choice is integral to Article 21 (right to life and liberty) of the Constitution". [UPSC 2019]
- M.K.Ranjitsinh judgement, the Supreme Court recognized the **right to protection from climate change impacts** under Articles 21 and 14 as essential to life and equality. [April, 2024]

Rights as part of Article 21:

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| 1. Right to live with human dignity. | 20. Right to a fair trial. |
| 2. Right to a decent environment, including pollution-free water and air and protection against hazardous industries. | 21. Right of prisoners to have necessities of life. |
| 3. Right to livelihood. | 22. Right of women to be treated with decency and dignity. |
| 4. Right to privacy. [UPSC 2021, 2018] | 23. Right against public hanging. |
| 5. Right to shelter. | 24. Right to road in hilly areas. |
| 6. Right to health. | 25. Right to information. |
| 7. Right to free education upto 14 years | 26. Right to reputation. |
| 8. Right to free legal aid. | 27. Right of appeal from a judgement of conviction |
| 9. Right against solitary confinement. | 28. Right to family pension |
| 10. Right to speedy trial. | 29. Right to social and economic justice and empowerment |
| 11. Right against handcuffing. | 30. Right against bar fetters |
| 12. Right against inhuman treatment. | 31. Right to appropriate life insurance policy |
| 13. Right against delayed execution. | 32. Right to sleep |
| 14. Right to travel abroad. | 33. Right to freedom from noise pollution |
| 15. Right against bonded labour. | 34. Right to sustainable development |
| 16. Right against custodial harassment. | 35. Right to opportunity. |
| 17. Right to emergency medical aid. | 36. Right to decent burial/cremation. |
| 18. Right to timely medical treatment in government hospitals. | 37. Right to marry a person of one's choice. |
| 19. Right not to be driven out of a state. | 38. Right to die with dignity. (passive euthanasia) |

Article 21A: (inserted by the 86th CAA, 2002): State shall provide **free and compulsory education** to all children of the **age of 6-14 years**, in such manner as the State may, by law, determine.

- This provision makes **only elementary education** a fundamental right, **not higher or professional education**. In pursuance of Article 21A, the Parliament enacted the Right of Children to free and Compulsory Education (RTE) Act, 2009
- In the **Unni Krishnan case** (1993), the Supreme Court recognized a fundamental right to primary education in the right to life under **Article 21**.

86th CAA (2002): Education for All is considered the “Dawn of the second revolution in the chapter of citizen’s rights”

Other changes made by the 86th CAA, 2002

- **Article 45 in Part IV:** The Directive principles of state policy – provision for **free education**
- **Change after 86th CAA:** The state shall endeavour to provide **early childhood care** and education to children until they complete the age of 6 years.
- **Article 51A:** It shall be the duty of every citizen of India to provide opportunities for education to his child or ward between the **age of 6 and 14 years**.

Article 22: It grants **protection to persons who are arrested or detained** in certain cases. [UPSC 2023]

Preventive detention: Without trial and conviction by court.

Punitive detention: Punishment after trial and conviction.

- **Article 22 (1):** Confers the rights of a person who is arrested or detained under an ordinary law. These include:
 - Right to be informed of the grounds of arrest;
 - Right to consult and be defended by a legal practitioner;
 - Right to be produced before a magistrate within 24 hours (excluding the journey time);
 - Right to be released after 24 hours unless the magistrate authorises further detention.
 - These safeguards are not available to an enemy alien or a person arrested or detained under a preventive detention law.
- **Article 22(2):** Grants protection to persons who are arrested or detained under a **preventive detention** law.
 - Available to **both** citizens as well as aliens.
 - The detention of a person **cannot exceed three months** unless the **advisory board** reports sufficient cause for extended detention. The board is to consist of **judges of a High Court**.
- Article 22 also **authorises the Parliament** to prescribe circumstances and classes of cases in which a person can be detained for **more than three months** under a preventive detention law **without obtaining the opinion of an advisory board**; maximum period for which a person can be detained under a preventive detention law; procedure to be followed by an advisory board.

- **Parliament has exclusive authority** to make a law of preventive detention with respect to **defence, foreign affairs and the security of India**.
- Both **Parliament** and **state legislatures** can concurrently make a law of preventive detention for security of state, maintenance of public order, supplies & services essential to the community.

No democratic country in the world has made preventive detention as an integral part of the Constitution as has been done in India.

Article 22(5):

- **Preventive Detention Rights:** Requires detainees to be informed of the grounds for detention.
- **Opportunity for Representation:** Guarantees the right to challenge detention legally.

Prevention of Terrorism Act (POTA), 2002:

- **Purpose:** Strengthened anti-terrorism operations; repealed in 2004.
- **Confession Admissibility:** Allowed confessions to police officers of a specified rank to be used in trials, raising concerns about coercion. [UPSC 2023]

RIGHT AGAINST EXPLOITATION: ARTICLE 23-24

Article 23: Prohibition of **traffic in human beings** and **forced labour**. [UPSC 2017]

- This right is available to both **citizens** and **non-citizens**.
- It is available against both the **State** and **Private** persons.

Exception: Article 23 permits the **State to impose compulsory service** for public purposes. E.g. Military service or social service, for which it is not bound to pay.

- Expression ‘**traffic in human beings**’ includes selling and buying of men, women and children like goods; Immoral traffic in women and children; prostitution; Devadasis; Slavery.
 - To punish these Acts, the Parliament has implemented the **Immoral Traffic (Prevention) Act, 1956**.

Article 24: Prohibits the **employment of children** (below the age of **14 years**) in any factory, mine or other hazardous activities like construction work or railway. [UPSC 2017]

- It **does not prohibit** their employment in any **harmless** or **innocent** work.
- **Commissions for Protection of Child Rights Act, 2005:** Enacted to provide for the establishment of **National and State Commissions for Protection of Child Rights** and **Children’s Courts** for providing **speedy trial** of offences against children or of violation of child rights.
- **Supreme Court:** Directed the establishment of the **Child Labour Rehabilitation Welfare Fund**.

In 2006, the government **banned the employment of children** as **domestic servants** or workers in business establishments like **hotels, dhabas, restaurants, shops** etc. Anyone employing children below the age of 14 years will be liable for prosecution and penal action.



RIGHT TO FREEDOM OF RELIGION: ARTICLE- 25-28

Article 25: All persons are equally entitled to **freedom of conscience** and the **right to freely profess, practice and propagate religion**. It includes:

- **Freedom of conscience:** Inner freedom of an individual to mould his relation with God or Creatures in whatever way he desires.
- **Right to profess:** Declaration of one's religious beliefs and faith openly and freely.
- **Right to practice:** Performance of religious worship, rituals, ceremonies and exhibition of beliefs and ideas.
- **Right to propagate:** Transmission and dissemination of one's religious beliefs to others or exposition of the tenets of one's religion.
 - Right to propagate **does not include a right to convert** another person to one's own religion. Forcible conversions **impinge on the 'freedom of conscience'** guaranteed to all persons alike.
- **Article 25 covers:** Religious beliefs (**doctrines**) and religious practices (**rituals**).
- **Article 25 also contains two explanations:**
 - Wearing and carrying of **kirpans** is to be included in the profession of the Sikh religion;
 - **Hindus** include Sikhs, Jains and Buddhists.
- **Available to all persons:** Citizens as well as non-citizens.
- **Exceptions:** Public order, morality, health and other provisions relating to fundamental rights.

Article 26: Freedom to manage religious affairs: Every religious denomination or any of its sections shall have the following rights:

- Right to **establish and maintain** institutions for religious and charitable purposes.
- Right to **manage its own affairs** in matters of religion.
- Right to **own and acquire** movable and immovable property.
- Right to **administer such property** in accordance with law.

Article 25 guarantees the rights of individuals, while **Article 26** guarantees the rights of religious denominations or their sections, thus protecting the **collective freedom of religion**.

- **Restrictions:** **Article 26** is subject to **public order, morality and health** but not subject to other provisions relating to the fundamental rights.
- **Supreme Court** held that religious denominations must satisfy three conditions:
 - It should be a collection of beliefs (doctrines) which they regard as conducive to their spiritual well-being.
 - It should have a common organisation.
 - It should be designated by a distinctive name.

SC held that **Ramkrishna Mission** and **Ananda Marga** are religious denominations within the Hindu religion, while **Aurobindo Society** is not a religious denomination.

Article 27: Freedom from Taxation for Promotion of a Religion: No person shall be compelled to pay any **taxes** for the promotion or maintenance of any particular religion or religious denomination.

- Provision prohibits the state from favouring, patronising and supporting one religion over the other.
- **Taxes can be used** for the promotion or maintenance of **all religions** and not any particular religion.
- **Provision prohibits** only the levy of a tax and **not a fee**.
 - Fee can be levied on religious endowments for meeting the regulation expenditure.

Article 28: Freedom from Attending Religious Instruction: No religious instruction shall be provided in any educational institution **wholly maintained out of state funds**.

- Not applicable to educational institutions administered by the state but established under any endowment or trust, requiring imparting of religious instruction in such institutions.
- No person attending any educational institution recognized by the state or receiving aid out of state funds shall be required to attend any religious instruction or worship in that institution without his/her consent.
- **Article 28** distinguishes **four** types of **educational institutions**:
 - Institution **wholly maintained by the state** - completely prohibited.
 - Institution **administered by the state but established under any endowment or trust** - religious instruction is permitted.
 - Institution **recognised by state** - permitted on a voluntary basis.
 - Institution **receiving aid from the state** - permitted on a voluntary basis.

CULTURAL AND EDUCATIONAL RIGHTS: ARTICLE 29-30

Article 29: Protection of Interests of Minorities

- **Rights of a group:** It provides that **'any section of the citizens'** residing in any part of India having a **distinct language, script or culture** of its own, shall have the **right to conserve** the same.
- **Right of a citizen as an individual:** No citizen shall be denied admission into any educational institution maintained by the State or receiving aid out of State funds on grounds only of religion, race, caste, or language.

Article 29 grants protection to both **religious minorities** as well as **linguistic minorities**.

- **The Supreme Court** held that
 - The term **'section of the citizens'** includes **minorities** as well as the **majority**.

- The **right to conserve the language** includes the **right to agitate** for the protection of the language.

Article 30: Right of minorities to establish and administer educational institutions

- All minorities, whether based on **religion** or **language**, shall have the **right to establish** and **administer** educational institutions of their choice.
- The **compensation amount** fixed by the State for the compulsory acquisition of any property of a minority educational institution shall not restrict or abrogate the right guaranteed to them.
- In granting aid, the State shall not discriminate against any educational institution managed by a minority.

The protection under Article 30 is **confined only to minorities (religious or linguistic)** and does not extend to any section of citizens.

- The term '**minority**' has **not been defined** anywhere in the Constitution.

The right under Article 30 also includes the **right of a minority to impart education to its children in its own language**.

Minority educational institutions are of **three types**:

- (a) **Seeking recognition as well as aid** from the State. They are subject to the regulatory power of the state.
 - (b) **Seeking only recognition** from the State and **not aid**. They are subject to the regulatory power of the state.
 - (c) **Neither seeking recognition nor aid** from the State. They are free to administer their affairs but subject to the operation of general laws like contract law, labour law etc.
- The right conferred on minorities under Article 30 is **only to ensure equality with the majority** and not intended to place the minorities in a more advantageous position vis-à-vis the majority. There is **no reverse discrimination** in favour of minorities.
 - The right to establish and administer educational institutions is **not absolute**. Nor does it include the right to maladminister.
 - In India, if a religious sect/community is given the status of a national minority, it entitled to, establish and administer exclusive educational institutions & It can derive benefits from the Prime Minister's 15-Point Programme.

[UPSC 2011]

RIGHT TO CONSTITUTIONAL REMEDIES: ARTICLE- 32

Article 32: These contain remedies for the enforcement of the fundamental rights of an aggrieved citizen. The right to get the Fundamental Rights protected is in itself a fundamental right.

- **Four provisions in Article 32:**
 1. Right to move to the Supreme Court.
 2. The Supreme Court has the power to issue writs.
 3. Parliament can empower any other court to issue directions, orders and writs of all kinds.

4. Right to move the Supreme Court shall not be suspended except as otherwise provided by the Constitution.

- The **Supreme Court** ruled that its power under **Article 32** is a **Basic feature** of the Constitution.
- Violation of **Fundamental Rights** is the **sine qua non** for the exercise of the rights conferred by Article 32.
- Constitutionally, the **President can suspend the right to move any court** for the enforcement of Fundamental Rights during a National Emergency (**Article 359**).
- **Enforcement of Fundamental Rights:** The jurisdiction of the SC is **original but not exclusive**. It is **concurrent** with the jurisdiction of the High Court under Art.226.
 - SC ruled that where relief through the High Court is available under Art.226, the aggrieved party should **first move the High Court**.
- **Article 32 cannot be invoked** to determine the constitutionality of an executive order or legislation **unless it directly infringes** any of the Fundamental Rights.
- **Ambedkar:** "It is an article without which this constitution be a nullity". It's the very **soul of the Constitution** and the **very heart of it**.

WRITS: TYPES AND SCOPE

- Borrowed from **English prerogative writs** fountain of justice.
- **Parliament**, under Art.32, can **empower any other court** to issue these writs.
- The **Supreme Court** (Article 32) and **High Court** (Article 226) can issue writs, namely:
- **Habeas Corpus:** Meaning: "**To have the body of.**"
 - **Use:** It is used to release a person who has been unlawfully detained or imprisoned. Through this writ, the court orders the detaining authority to bring the detained person before the court to determine the legality of detention. Not issued when detention is lawful, contempt of court or legislature, by a competent court, or outside court jurisdiction.
- **Mandamus:** Meaning: "**We command.**"
 - **Use:** It commands a public authority to perform a public or statutory duty. This writ is issued when a lower court, a government officer, corporation, or any public authority has failed or refused to fulfil its duty. Not issued against private individuals, for non-statutory departmental instructions, discretionary duties, contractual obligations, the President, State Governors, or Chief Justice acting judicially. [UPSC 2022]
- **Prohibition:** Meaning: "**To forbid.**"
 - **Use:** It is issued by a higher court to a lower court or tribunal to prevent the latter from exceeding its jurisdiction or usurping a jurisdiction it does not possess. The writ of prohibition is only issued against judicial and quasi-judicial authorities. Not available against administrative authorities, legislative bodies, private individuals, or bodies. [UPSC 2024]



- **Certiorari:** Meaning: “To be certified” or “To be informed.”
 - **Use:** It is used by a higher court to review the decision of a lower court or tribunal. It can be issued to quash a decision that has been made without jurisdiction or in violation of the rules of natural justice. Initially against judicial and quasi-judicial authorities, it was extended to administrative authorities in 1991. Not available against legislative bodies, private individuals, or bodies.
- **Quo Warranto:** Meaning: “By what warrant?”
 - **Use:** This writ is used to challenge the legality of a person’s claim to a public office. It restrains the person from acting in an office to which he/she is not entitled and asks them to show by what authority they hold the office. Applicable to substantive public offices of a permanent character created by statute or the Constitution. Can be sought by any interested person, not necessarily the aggrieved person. [UPSC 2022]

Comparison between the writ jurisdiction of Supreme Court Vs High Court:

Supreme Court (SC)	High Court (HC)
Narrower jurisdiction: can issue writs only for the enforcement of Fundamental Rights.	Wider jurisdiction: can issue writs not only for the enforcement of Fundamental Rights but also for “ any other purpose ” (Ordinary legal rights).
SC can issue writs against a person or government throughout the territory of India.	HC can issue writs against a person residing or against a govt or authority located within its territorial jurisdiction only or outside only if, the cause of action arises within its territorial jurisdiction.
Mandatory: Remedy under Article 32 is in itself a Fundamental Right, SC may not refuse to exercise its writ jurisdiction.	Discretionary: Remedy under Article 226 is discretionary, HC may refuse to exercise its writ jurisdiction.

ARMED FORCES AND FUNDAMENTAL RIGHTS: ARTICLE 33-35

Article 33: Parliament can restrict or abrogate, by law, FRs in the application to: Members of Armed forces, Paramilitary Forces, police forces, intelligence agencies and analogous forces.

- Forces charged with the maintenance of public order.
- Parliamentary law enacted under Article 33 **can also exclude the Court Martials** (tribunals established under the Military law) **from the writ jurisdiction of SC and HC**, so far as enforcement of FR is concerned.
- Power to make laws under Article 33 is **conferred only on Parliament and not on state legislatures**.
- Any such law **cannot be challenged in any court on the ground of contravention of any of the FR**.
- The expression ‘**members of the armed forces**’ also covers such employees of the armed forces as barbers, carpenters, mechanics, cooks, chowkidars, bootmakers, and tailors who are **non-combatants**.

Article 34: When **Martial Law** is in force in any area within the territory of India, the **FRs can be restricted**. Borrowed from the **English common law**.

Martial law literally means ‘military rule’. It refers to a situation where civil administration is run by the military authorities according to their own rules and regulations framed outside the ordinary law. It thus implies the suspension of ordinary law and the government by military tribunals. It is different from the military law that is applicable to the armed forces.

- **Supreme Court:** declaration of martial law **does not** ipso facto result in the suspension of writ of habeas corpus.
- It **empowers the Parliament to indemnify** any government servant or any other person for any act done by him. The Act of Indemnity made by the Parliament **cannot be challenged in any court** on the ground of contravention of any of the FR.
- The expression ‘**martial law**’ **has not been defined** anywhere in the Constitution.
- **No specific or express provision in the Constitution** that authorises the executive to declare martial law, it is **implicit in Article 34**.

Difference between Martial Law and National Emergency

Martial Law	National Emergency (Art.352)
• Affects only Fundamental Rights. • It suspends the government and ordinary law courts. • Imposed to restore the breakdown of law and order due to any reason. • Imposed in some specific areas of the country. • No specific provision in the Constitution. It is implicit.	• Affects not only Fundamental Rights but also the Centre-state relations, distribution of revenues and legislative powers between centre and states and may extend the tenure of the Parliament. • It continues the government and ordinary law courts. • Imposed only on three grounds—war, external aggression or armed rebellion. • Imposed either in the whole country or in any part of it. • Specific and detailed provisions in the Constitution. It is explicit.

Article 35: It lays down that the power to make laws, and to give effect to certain specified fundamental rights, shall vest **only in the Parliament and not in the state legislatures**. Ensures there is **uniformity throughout India** with regard to the nature of those FRs and punishment.

- **Parliament** shall have (and legislature of a state shall not have) power to make laws with respect to:
 - **Article 16:** Prescribing residence as a condition for certain employment or appointments.
 - **Article 32:** Empowering courts other than SC and HC to issue directions, orders and writs.
 - **Article 33:** Restricting or abrogating the application of FR to members of armed forces, police forces, etc.
 - **Article 34:** Indemnifying any government servant or other person for any act done in martial law.
- Parliament shall have powers to make laws for prescribing punishment for those acts that are declared to be offences under the FR. These include the following:
 - **Article 17:** Untouchability.
 - **Article 23:** Traffic in human beings and forced labour.
- **Article 35 extends the competence** of the Parliament to make a law on the matters specified above, although some of those matters may fall within the **sphere of the state legislatures (State List)**.

EXCEPTIONS TO FUNDAMENTAL RIGHTS

- Their scope of operation of Fundamental Rights is limited by:
- **Article 31A:** Saves **five categories of laws** from being challenged for contravention of the fundamental rights conferred by **Article 14 and Article 19**. These are:
 - Acquisition of estates and related rights by the State;
 - Taking over the management of properties by the State;
 - Amalgamation of corporations;
 - Extinguishment or modification of rights of directors or shareholders of corporations;
 - Extinguishment or modification of mining leases.
- **Article 31B:** Saves the acts and regulations included in the **Ninth Schedule** (added by **First Amendment in 1951**) from being challenged for contravention of any of the fundamental rights.
 - **SC in I.R. Coelho case (2007):** No blanket immunity from judicial review of laws included in the Ninth

Schedule. Judicial review is a 'basic feature' of the constitution. Such laws placed after **April 24, 1973** (the date of Kesavananda Bharati judgement), are open to challenge in court if they violated fundamental rights. **[UPSC 2018]**

- **Article 31C:** No law that seeks to implement the socialistic DPSP specified in **Art. 39(b) or (c)** shall be void on the ground of contravention of the FR conferred by **Article 14 or Article 19**.

Rights Outside Part III

- **Article 265/Part XII:** No tax shall be levied or collected except by authority of law.
- **Article 300-A/Part XII:** No person shall be deprived of his property save by authority of law.
- **Article 301/Part XIII:** Trade, commerce and intercourse throughout the territory of India shall be free.
- **Article 326/Part XV:** Adult Suffrage (Right to Vote): **Constitutional right.** **[UPSC 2017]**
- **61st Constitutional Amendment 1989:** Lowered the voting age of elections to the Lok Sabha and to the Legislative Assemblies of States from **21 to 18 years**.

Universal Declaration of Human Rights (UDHR)

- The General Assembly of the United Nations, on 10 December 1948, announced the **30 rights and freedoms** that belong to everyone, under the **Universal Declaration of Human Rights (UDHR)**.
- **Article 26 of UDHR:** Right to free elementary education.
- **Article 27 of UDHR:** Right to cultural participation and protection of intellectual work.
- It promises to all the **economic, social, political, cultural and civic rights** for a life free from want and fear. Reflected in the principles of Fundamental rights, DPSPs, fundamental duties and the Preamble. **[UPSC 2020]**
- The Preamble's **Justice, Equality, and Liberty** reflect **Article 3 of UDHR:** right to life, liberty, and security. **[UPSC 2020]**
- **DPSPs align with Article 22 of UDHR**, ensuring social security and justice.
- **Fundamental Duties** (Article 51A) are civic obligations, including ensuring education for children aged 6-14. **[UPSC 2020]**

